Evaluating AI's Current Reality, Future Horizon, and the Human Aspect

Trust and Verification in Estate Administration

Current Status of AI In Probating an Estate for Fiduciaries

- Helpful: Organizing large amounts of data into court-compliant formats. Reduced hours of data entry and organization.
- Harmful: Dropping critical legal context. This could have been due to token limitations that the AI did not indicate any notification of, or a drop in context understanding.

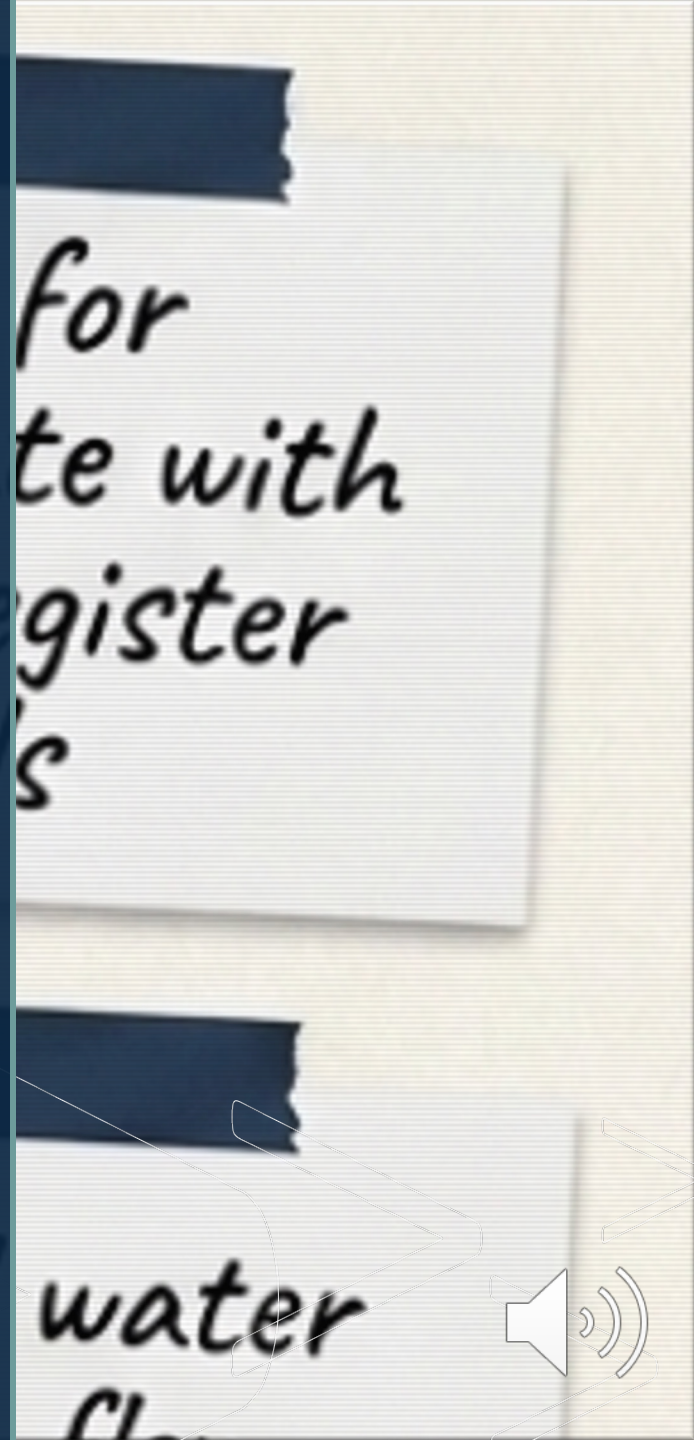
How time-heavy work becomes structured data.

TASK: THE AI WAS TASKED WITH FORMATTING AND CALCULATING TRAVEL AND LABOR INFORMATION INTO A VERMONT PROBATE COURT ACCOUNTING TABLE.

PROVISIONS: THE AI WAS PROVIDED WITH THE ‘PROBATING A VERMONT ESTATE BOOKLET’ FOR BACKGROUND AND RELEVANT DETAILS ON START, STOP, AND END DATES, TIMES, AND LOCATIONS TO BUILD A GRAPH SHOWING TIME SPENT ON ESTATE-RELATED TASKS.

OUTCOME: THE AI PROVIDED A CLEAN, EASY-TO-READ REGISTER OF ALL DATES, MILEAGE, DRIVE TIMES, AND TIME SPENT WORKING ON ESTATE TASKS.

WHERE THE HUMAN WAS NEEDED: DRIVE TIME ESTIMATES IN SOME PLACES WERE SIGNIFICANTLY SHORTER THAN POSSIBLE, NECESSITATING HUMAN REVIEW BEFORE SUBMISSION.

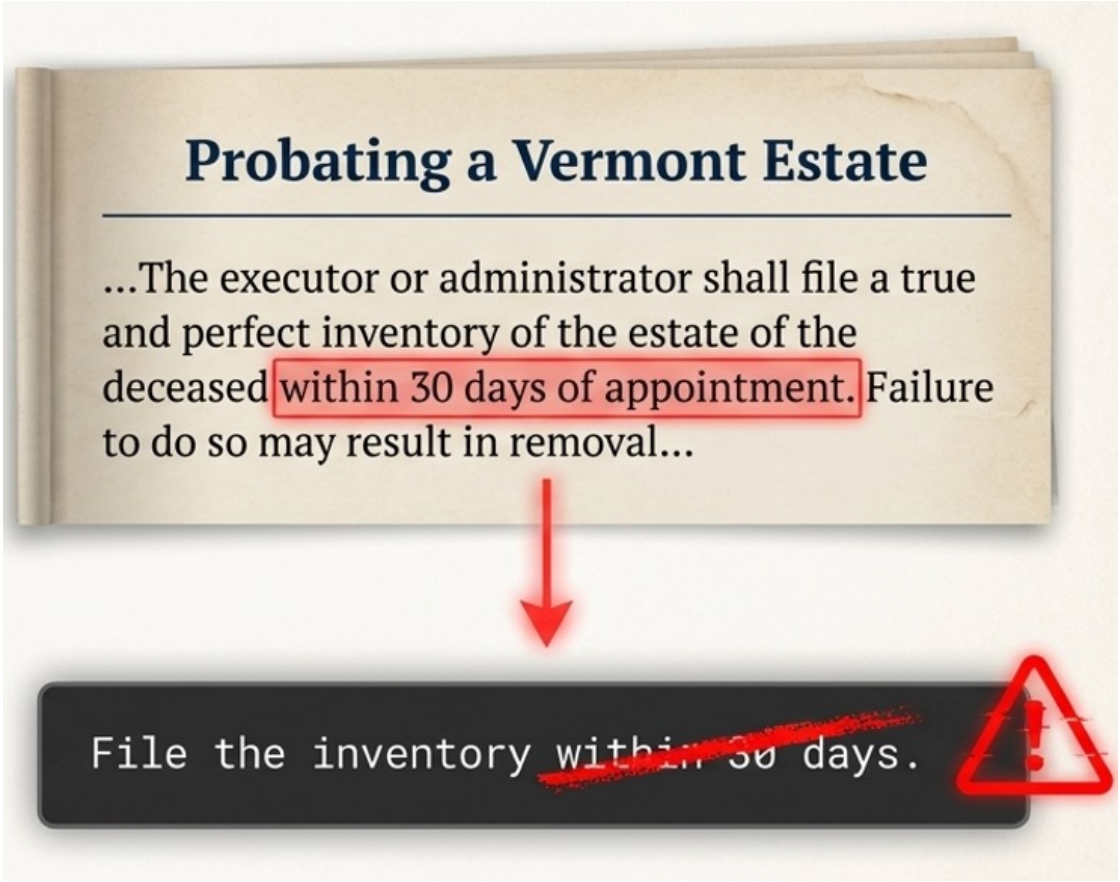


Unintentional Harms with Real Consequences

- AI was tasked with outlining the duties for Administrators from the 11-page Vermont Probate Estate Booklet

- **What Went Wrong?**
AI dropped crucial context, which materially changed the expectations of when an inventory of assets should be submitted to the court

- **What is the Harm?**
30 days from death vs. 30 days from court appointment are significantly different timelines, one of which could have the fiduciary removed by the court from acting on behalf of their loved one.



Copilot Predicts the Next 24 Months of Estate Administration



- Copilot claim: **“Expect AI-driven intake, automated inventory building, probate/trust document generation, meeting-note extraction, beneficiary communications, and tax-sensitive modeling to become standard. Firms will see 30–50% reductions in drafting and administration time.”**

Findings:

- In attempting to search for the 30-50% reduction metric, Copilot let me to Happycapy guide, “How to Use AI for an Estate Planning Law Firm in 2026: A Pragmatic Managing-Partner's Playbook,”- where I was able to find the 30-50% metric, however, the actual claim states states: 30—50% reduction in drafting time in response to a question regarding an estate planning firm rolling out AI for a 1-25 person headcount.



What to tell Others?



IN THIS UNIQUE ASPECT OF LIFE, ‘COLLEAGUE’ DOESN’T QUITE FIT THE BILL, BUT ALMOST EVERYONE ENCOUNTERS THIS DUTY IN LIFE, SO IT IS APPLICABLE TO ALL.



I WOULD TELL SOMEONE WHO REPEATED THAT CLAIM THAT IT REFERS TO LEGAL *PROFESSIONALS*, NOT ADMINISTRATORS COMPLETING WORK ON BEHALF OF FAMILY MEMBERS, AND THAT IT HAD TO DO WITH DRAFTING RESPONSES, FOR EXAMPLE, TO QUESTIONS THAT ADMINISTRATORS WOULD SEND TO LEGAL PROFESSIONALS.



What's Not Changing? Humans will always be needed

- Estate Administration will continue to require a human; AI cannot be held responsible or liable for legal liability.
- Family members understand the sentimental value and meaning attributed to their duties; AI cannot replicate that type of human judgment.
- A human will need to physically sort through belongings left by a loved one, distributing them as requested, and clearing out things left behind, so that is a major aspect of my work that will still need a person.

Final Thoughts



AI can help with burdensome mundane tasks, but it must be checked for hallucinations and dropping important details



AI can confidently produce incorrect figures that must be independently checked. Using the S.I.F.T. method helps here.



When managing the affairs of a loved one, hands-on management is irreplaceable. Complex ambiguity, physical cleanout and distributions, and legal liability remain in the hands of a human.